

CHAPTER 10

Army Reserve Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. Retention of national servicemen in army service.
2. Recall of national servicemen into army service.
3. Territorial army emergency reserve.
4. Provisions supplemental to ss. 2 and 3.
5. Safeguards for civil employment and interests.
6. Interpretation and calculation of service.
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SCHEDULE—Calculation of length of service.

An Act to make further provision with respect to reserves
for the regular army. [15th March, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Without prejudice to section nine of the Army Act, 1955, as applied by section twenty of that Act, where at any time after the passing of this Act any person, not being the holder of a commission, is in army service as, or as the equivalent of, his whole-time service under the National Service Act, 1948, the Secretary of State may by notice in writing retain that person in army service for such term not exceeding six months beginning with the completion of that whole-time or equivalent service as may be specified in the notice.

Retention
of national
servicemen
in army
service.

(2) Where any person, being the holder of a commission, is at any time after the passing of this Act employed as the holder of that commission in army service as the equivalent of whole-time service under the said Act of 1948, the Secretary of State may require that person to continue in army service until the expiration of the period of thirty months beginning with the date on which he first entered on, or on the equivalent of, his whole-time service under that Act.

2.—(1) Without prejudice to any liability to be called out or embodied under section five or six of the Army Reserve Act, 1950, or section twenty-three or twenty-five of the Auxiliary Forces Act, 1953, and without prejudice to any obligation by virtue of his holding a commission, but subject to subsection (3) of this section, any person who has completed

Recall of
national
servicemen
into army
service.

a period of army service which is, or is the equivalent of, his whole-time service under the National Service Act, 1948, may, at any time before he has completed the term of, or of the equivalent of, his part-time service under that Act, be recalled into army service by the Secretary of State by notice in writing for such term consistent with subsection (2) of this section beginning on such date as may be specified in the notice.

(2) No person shall be recalled under this section for more than one period of army service and, subject to the provisions of the Schedule to this Act, the term for which any person is so recalled shall not exceed six months reduced by any period of army service—

(a) rendered by virtue of subsection (1) of section one of this Act ; or

(b) rendered by virtue of subsection (2) of the said section one after the expiration of the period of twenty-four months beginning with the date referred to in that subsection ; or

(c) rendered by virtue of section three of this Act ;

and subject as aforesaid no person's term of service under this section shall end later than the date when he completes the term of, or of the equivalent of, his part-time service under the said Act of 1948.

(3) Subsection (1) of this section shall not apply to any person—

(a) during the period specified in any agreement entered into by him for the purposes of section three of this Act which is for the time being in force ; or

(b) if he has entered into an agreement for the purposes of paragraph (c) of subsection (1) of section six of the Army Reserve Act, 1950, which is for the time being in force ; or

(c) if he is for the time being a person of any of the descriptions specified in the First Schedule to the said Act of 1948 (which relates to the persons exempted from service under that Act).

Territorial
army
emergency
reserve.

3.—(1) Where any person who is a member of the territorial army, not being a person serving in that army only in pursuance of the National Service Act, 1948, has entered into an agreement in writing to that effect, the Secretary of State may at any time during the period specified in the agreement by notice in writing call out that person for army service for such term consistent with subsection (2) of this section beginning on such date falling within that period as may be specified in the notice, whether or not any of that term falls after the date when the agreement ceases to be in force.

(2) Subject to the provisions of the Schedule to this Act, the term, or, if more than one, the aggregate of the terms, for which any person is called out for service under this section in pursuance of any one agreement shall not exceed six months.

(3) Any agreement for the purposes of this section shall be made with respect to such period of twelve months as may be specified therein and, without prejudice to the making of a further agreement, shall cease to be in force at the expiration of that period.

(4) An agreement for the purposes of this section may be revoked at any time by three months' notice in writing but shall not cease to be in force until the expiration of that notice; and any notice given by any person under subsection (1) of section seventeen of the Auxiliary Forces Act, 1953, of his desire to be discharged from the territorial army shall be deemed to include notice of revocation of any agreement entered into by that person for the purposes of this section.

(5) If the term of any person's enlistment in the territorial army expires during the period specified in any agreement entered into by that person for the purposes of this section or during the term of any service by him by virtue of this section, he shall not be entitled to be discharged from the territorial army before the expiration of that period or term.

(6) The number of persons for the time being called out under this section shall not be reckoned in the numbers for the time being authorised by Parliament for the regular forces; but the aggregate number of the persons for the time being liable to be called out by virtue of agreements made for the purposes of this section or of paragraph (c) of subsection (1) of section six of the Army Reserve Act, 1950, and of the persons for the time being designated under paragraph (b) of that subsection shall not exceed sixty thousand; and subsection (3) of the said section six is hereby repealed.

4.—(1) A notice to any person under subsection (1) of section two or subsection (1) of section three of this Act shall specify the time and place at which he is to present himself for service in accordance with the notice and may be revoked or varied by a subsequent notice thereunder; and any such notice shall be deemed to have been duly served on the person to whom it is directed if—

Provisions
supplemental
to ss. 2 and 3.

(a) it is delivered to him personally; or

(b) it is sent by registered post or the recorded delivery service addressed to him at his latest address known to the military authorities.

(2) Where any person has been recalled or called out by such a notice as aforesaid, then, at all times during the period beginning with the date and time specified in the notice and ending with the completion of his service by virtue of that notice, he shall be liable to serve in any place, whether in the United Kingdom or elsewhere, and the Army Act, 1955, shall apply to him as if he were an officer holding a land forces commission, warrant officer, non-commissioned officer or soldier, as the case may be, of the regular forces, and not a member of the territorial army, the army reserve or a reserve of officers, as the case may be, but, in the case of a person who does not for the time being hold a commission, subject to the same exceptions as in the case of a person enlisted in pursuance of the National Service Act, 1948.

(3) The Secretary of State shall from time to time report to Parliament with respect to the exercise of his powers to recall persons under section two or call out persons under section three of this Act, and any such report may be made, as the Secretary of State thinks fit, either with respect to any use made, or with respect to any use proposed to be made, of those powers.

(4) Where a member of the territorial army has been recalled into army service under section two or called out for army service under section three of this Act—

(a) if, while he is rendering that service, directions are given under the Auxiliary Forces Act, 1953, for embodying the territorial army or the part thereof in which he was serving before he was so recalled or called out, he shall thereupon be deemed to be embodied and his service by virtue of the said section two or three shall cease ;

(b) if he so desires and he is not serving in the territorial army only in pursuance of the National Service Act, 1948, there shall be taken, as soon as may be convenient after the end of the term of his service by virtue of the said section two or three, all such steps as are necessary to enable him to serve again in the corps and unit of the territorial army in which he was serving at the time when he was so recalled or called out.

(5) If, while a member of the army reserve is in army service by virtue of section two of this Act, the army reserve is called out on permanent service by proclamation under section five of the Army Reserve Act, 1950, he shall be treated as called out on permanent service under that section and his service by virtue of the said section two shall cease.

5.—(1) In relation to any person retained or continuing in army service by virtue of section one of this Act, Part II of the National Service Act, 1948 (which relates to reinstatement in civil employment after whole-time service under that Act) shall have effect as if any period for which that person is so retained or so continues were a continuation of his whole-time or equivalent service under that Act. Safeguards for civil employment and interests.

(2) Where any person is, or is liable to be, recalled under section two or called out under section three of this Act, the provisions of the Reinstatement in Civil Employment Act, 1950, shall apply to that person as they apply to a person who has entered, or, as the case may be, may be required to enter, upon a period of whole-time service in the armed forces of the Crown in the circumstances mentioned in paragraph (a) of section one of that Act.

(3) Any service rendered by virtue of section one, two or three of this Act shall be relevant service within the meaning of the Reserve and Auxiliary Forces (Protection of Civil Interests) Act, 1951.

6.—(1) In this Act, the expression “equivalent” in relation to whole-time or part-time service under the National Service Act, 1948, means service which is recognised by the Army Council as equivalent to whole-time or, as the case may be, part-time military service under that Act. Interpretation and calculation of service.

(2) The provisions of the Schedule to this Act shall have effect for the purpose of calculating the terms or periods of service therein mentioned.

(3) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment.

7. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under any other Act. Expenses.

8.—(1) This Act may be cited as the Army Reserve Act, 1962. Short title and extent.

(2) This Act extends to the United Kingdom and the Isle of Man.

Section 6.

SCHEDULE

CALCULATION OF LENGTH OF SERVICE

1. If, in the case of any person, at the time when—

- (a) the term of any service by him under subsection (1) of section one or under section two or three of this Act ; or
- (b) the period referred to in subsection (2) of the said section one,

would otherwise be completed, that person has become liable to be proceeded against for an offence against the Naval Discipline Act, 1957, military law or air-force law, that term or period shall not be completed until he has been tried or otherwise dealt with for that offence and has undergone any punishment awarded therefor, or, if at that time punishment for such an offence as aforesaid has already been awarded, until he has undergone that punishment.

2. In determining in the case of any person the end of any such term or period as is mentioned in the foregoing paragraph or the length of any period of service rendered as mentioned in paragraph (a), (b) or (c) of subsection (2) of section two of this Act, no account shall be taken—

- (a) in relation to any service which is, or is the equivalent of, whole-time service under the National Service Act, 1948, of any day before the day on which that person presented himself in pursuance of his enlistment notice, if any, under that Act ;
- (b) in relation to any service under section two or three of this Act, of any day before the day on which that person presented himself in pursuance of the notice to him under subsection (1) of that section ;
- (c) of any continuous period exceeding fourteen days during which that person was absent as a deserter or absent without leave ;
- (d) of any continuous period exceeding fourteen days during which that person—
 - (i) was serving, or would if he had not been unlawfully at large have been serving, a term of imprisonment, detention, preventive detention, corrective training or detention in a detention centre ; or
 - (ii) was detained, or would if he had not been unlawfully at large have been detained, in a borstal institution, in pursuance of a sentence of a court or an award by his commanding officer or in default of payment of any sum of money or for doing or failing to do or abstain from doing anything required to be done or left undone.

3. If, in the case of any term or period such as is mentioned in paragraph 1 of this Schedule, leave of absence is granted to the person in question for a period comprising or immediately following the date on which that term or period would otherwise be completed, the Army Council may postpone the completion of that term or period until a date not later than the expiry of his leave.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
National Service Act, 1948	11 & 12 Geo. 6. c. 64
Army Reserve Act, 1950	14 Geo. 6. c. 32
Reinstatement in Civil Employment Act, 1950 ...	14 & 15 Geo. 6. c. 10
Reserve and Auxiliary Forces (Protection of Civil Interests) Act, 1951	14 & 15 Geo. 6. c. 65
Auxiliary Forces Act, 1953	1 & 2 Eliz. 2. c. 50
Army Act, 1955	3 & 4 Eliz. 2. c. 18
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53

CHAPTER 11

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and sixty-one, one thousand nine hundred and sixty-two and one thousand nine hundred and sixty-three.

[29th March, 1962]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to Her Majesty for the service of the years ending on the thirty-first day of March, one thousand nine hundred and sixty-one and one thousand nine hundred and sixty-two, the sum of one hundred and four million, three hundred and twenty-five thousand, two hundred and eighty-one pounds, eight shillings and ninepence.

Issue of
£104,325,281 8s. 9d.
out of the
Consolidated Fund
for the service of
the years ending
31st March, 1961
and 1962.

2. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to Her Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and sixty-three, the sum of two thousand two hundred and forty-eight million, eighteen thousand, seven hundred and three pounds.

Issue of
£2,248,018,703
out of the
Consolidated Fund
for the service of
the year ending
31st March, 1963.